

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3240 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: John Waldron

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3240

By: Hasenbeck

FLOOR SUBSTITUTE

An Act relating to schools; defining term; requiring public school districts to annually identify certain students beginning in certain school year; providing criteria for identification; requiring certain public school district boards of education to annually adopt certain resolution; providing for contents of resolution; requiring resolution to be considered during certain meeting; directing certain parents and legal guardians to be provided certain applications, instructions, and assistance; prohibiting a school district from taking certain actions if a student is unable to pay for a meal or accrues certain debt; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3-119.2 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. As used in this section, "community eligibility provision" means the federal provision created pursuant to 42 U.S.C., Section 1759a that allows school districts to choose to receive federal special assistance payments for school meals in exchange for

1 providing free school meals to all students enrolled in all or
2 selected school sites within the school district.

3 B. Beginning with the 2026-2027 school year, each public school
4 district in this state shall annually identify the number of
5 students enrolled in the district who are directly certified to
6 receive free or reduced-price school breakfasts and lunches. For
7 the purposes of this section, "directly certified" means students
8 who:

9 1. Participate in Medicaid;

10 2. Participate in the Supplemental Nutrition Assistance Program
11 (SNAP);

12 3. Participate in the Food Distribution Program on Indian
13 Reservations (FDPIR);

14 4. Participate in Temporary Assistance for Needy Families
15 (TANF); or

16 5. Are homeless, transient, or in foster care.

17 C. Beginning with the 2026-2027 school year, the board of
18 education of a public school district in which all school sites are
19 eligible to receive the federal special assistance payments for all
20 reimbursable school breakfasts and lunches served pursuant to the
21 community eligibility provision shall annually adopt a resolution
22 indicating its degree of participation, if any, in the community
23 eligibility provision. If a school district is unable to
24 participate in the community eligibility provision because doing so

1 would cause financial hardship, the school district board of
2 education shall adopt a resolution reflecting such information. The
3 school district board of education shall consider the resolution
4 during the same meeting the school district budget is considered,
5 and the agenda for such meeting shall reflect the resolution to be
6 considered.

7 D. Each public school district shall ensure that parents and
8 legal guardians of students enrolled in the district who are
9 eligible for free and reduced-price meals receive the necessary
10 applications and instructions for participation. Upon request, a
11 school district shall provide assistance in completing the
12 applications.

13 E. If a student is unable to pay for a meal or accrues school
14 meal debt, the public school district in which the student is
15 enrolled shall not publicly identify or penalize the student in any
16 way including, but not limited to, denying a meal, serving an
17 alternative meal, discarding a meal after serving it to the student,
18 requiring chores or work in exchange for a meal, prohibiting the
19 student from participating in extracurricular activities, denying
20 the student from participating in graduation, withholding the
21 student's diploma, or refusing to fulfill the student's requests for
22 transcripts.

23 SECTION 2. This act shall become effective July 1, 2026.
24

SECTION 3. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

60-2-17119 SW 03/09/26